In what are called civil ‘disputes’ there is often in fact great scope for cooperation. What looks like a zero sum confrontation can, with a little goodwill, be transformed into a mutually beneficial nonzero sum game. Consider divorce. A good marriage is obviously a nonzero sum game, brimming with mutual cooperation. But even when it breaks down there are all sorts of reasons why a couple could benefit by continuing to cooperate, and treating their divorce, too, as nonzero sum. As if child welfare were not a sufficient reason, the fees of two lawyers will make a nasty dent in the family finances. So obviously a sensible and civilized couple begin by going *together* to see one lawyer, don’t they?

Well, actually no. At least in England and, until recently, in all fifty states of the USA, the law, or more strictly—and significantly—the lawyers’ own professional code, doesn’t allow them to. Lawyers must accept only one member of a couple as a client. The other person is turned from the door, and either has no legal advice at all or is forced to go to another lawyer. And that is when the fun begins. In separate chambers but with one voice, the two lawyers immediately start referring to ‘us’ and ‘them’. ‘Us’, you understand, doesn’t mean me and my wife; it means me and my lawyer against her and her lawyer. When the case comes to court, it is actually listed as ‘Smith *versus* Smith’! It is *assumed* to be adversarial, whether the couple feel adversarial or not, whether or not they have specifically agreed that they want to be sensibly amicable. And who benefits from treating it as an ‘I win, you lose’ tussle? The chances are, only the lawyers.

The hapless couple have been dragged into a zero sum game. For the lawyers, however, the case of *Smith* v. *Smith* is a nice fat *non*zero sum game, with the Smiths providing the pay-offs and the two professionals milking their clients’ joint account in elaborately coded cooperation. One way in which they cooperate is to make proposals that they both know the other side will not accept. This prompts a counter proposal that, again, both know is unacceptable. And so it goes on. Every letter, every telephone call exchanged between the cooperating ‘adversaries’ adds another wad to the bill. With luck, this procedure can be dragged out for months or even years, with costs mounting in parallel. The lawyers don’t get together to work all this out. On the contrary, it is ironically their scrupulous separateness that is the chief instrument of their cooperation at the expense of the clients. The lawyers may not even be aware of what they are doing. Like the vampire bats that we shall meet in a moment,